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Flock Safety AI cameras have sparked debate around Tompkins County over concerns about data sharing with federal agencies. *Photo by [Nathan Ellison](#) / The Cornell Daily Sun*

Flock Safety's AI Cameras Raise Debate in Tompkins County Over

Data Sharing With Federal Agencies

By Joshua Cohen

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Police safety monitoring cameras, powered by artificial intelligence, have been scattered across Tompkins County beginning this year, and residents and local legislators are expressing concerns over implications of data sharing with counties in agreement with federal agencies such as U.S. Immigration and Customs Enforcement.

Ithaca is a sanctuary city, meaning that the Ithaca Police Department does not have contractual agreements with federal immigration agencies, including ICE. However, Broome County, nearly adjacent to Tompkins County, has opted into an agreement with federal immigration programs.

In 2023, Ithaca's Common Council approved funding for 22 automatic license plate readers across the city, which the IPD currently operates. The security company, Flock Safety, has access to the camera's data for up to 30 days after data is captured.

Nevertheless, four members of the Tompkins County Legislature, including Amanda Champion (D-Ithaca), Michael Lane (D-Dryden), Veronica Pillar (D-Ithaca) and Shawna Black (D-Ithaca), recently opposed a New York State gun-involved violence elimination grant that would sponsor the continuation of Flock Safety cameras. In a statement to The Sun, Black wrote that "I did not support [funding] Flock cameras and I believe there are other ways for us to use the funding."

The cameras have been useful in investigative cases to preserve public safety, according to IPD Chief Thomas Kelly. Kelly told The Ithaca Times on Sept. 3 that, “Flock data has already proven useful in solving crimes by providing leads that would not have otherwise been available.”

Flock Safety has reported itself that it operates in over 700 cities nationwide and utilizes tools such as license plate readers to obtain evidence in investigations. Flock has continuously stressed its commitment to “[helping] law enforcement solve cross-jurisdiction crimes faster —while upholding strict privacy and data ethics” on its website.

Black said that she “personally [doesn’t] trust [Flock Safety] to provide protection or not use the collected footage for [the deportation of] undocumented people that live in our county.”

Black also presented an alternative to safety camera programs, highlighting that cameras are usually activated after a crime has been committed.

“We need a more preventative manner to reduce gun violence,” Black said. “[Something] that we’ve seen effective is youth employment and engagement. There’s also an education and prevention piece that I believe we haven’t talked much about.”

In early November, residents of Redmond, Washington, similarly pushed to dismantle Flock Safety cameras after suspecting data sharing with ICE following numerous arrests that were made within a mile of a camera’s location.

Maintaining Data Privacy: Ithaca and Tompkins County

At a Tompkins County Legislature meeting on Oct. 7, a Flock Safety representative discussed privacy provisions such as not allowing data access to agencies outside New York State and data being automatically deleted after a 30-day period under Flock’s default policy.

Tompkins County Sheriff Derek Osborne responded to concerns over Flock Safety data sharing in a statement to The Sun, saying that, “We only provide access to other agencies within NYS that have contracts with Flock,” Osborne wrote, referencing his commitment to “[alleviating] community concerns and [preserving] local trust.”

He emphasized that the Tompkins County Sheriff's Office does not participate in ICE operations and Flock is “perhaps the most limited and least maintained — as far as records retention — than [other systems in the Tompkins County Sheriff's Office's interactions and data].”

County Legislator Deborah Dawson also expressed her support for Sheriff Osborne's position in upholding Tompkins County's sanctuary policies in a statement to The Sun.

“Sheriff Osborne has already proven himself willing and able to refuse ICE requests for cooperation unless such requests are accompanied by a signed judicial warrant,” Dawson said, citing Osborne's refusal to hold and turn over a detainee at ICE's request.

Citizen Concerns With Flock Safety Data Sharing

However, some Tompkins County residents have expressed concerns with the potential for these cameras to be used to aid ICE in tracking undocumented citizens and individuals who travel to Tompkins County to receive abortions that are illegal in their respective states. Reporting done under 404 media has also found that ICE has been working with local law enforcement agencies to access their Flock databases upon request.

As defined by the New York Times, sanctuary jurisdictions are areas that create policies “[limiting] cooperation with immigration agents who seek to deport undocumented immigrants.” Ithaca Common Council unanimously reaffirmed Ithaca's status as a sanctuary city on Nov. 5 after the U.S. Department of Justice called for an investigation into the Tompkins County

Sheriff who allegedly failed to honor a federal warrant when he released an undocumented immigrant from custody.

On Aug. 6, several Ithaca residents expressed dissatisfaction over IPD's contract with Flock Safety at an Ithaca Common Council meeting, citing what they see as data sharing with federal agencies in other areas that utilize Flock Safety cameras.

"The information that is collected by the Flock cameras are being accessed and used in ways that well-intentioned communities are not aware of and not in control of," said Katie Church, a resident who spoke during public comment.

Ithaca Mayor Robert Cantelmo told The Ithaca Times that he was "alarmed" by the stories about loopholes within the Flock system, and that he would like to hear from the Flock Safety administrators in the future on the implementation of new safety measures.

Kelly responded to concerns of data sharing by telling The Ithaca Times that, "all agencies that access IPD's Flock data must comply with the same strict usage policies [set by IPD], which prohibit unauthorized use or sharing — including with federal agencies for immigration enforcement."

Implications of Law Enforcement Agencies Signing Agreements With ICE

These privacy concerns come after a wave of New York Sheriff's offices, including nearby Steuben, Madison and Broome counties, have signed an ICE program, called Delegation of Immigration Authority Section 287(g) Immigration and Nationality Act, which allows ICE to "partner with state and local law enforcement" local sheriff's offices to assist with immigration enforcement," according to their website.

Nearby Broome County only agreed to sign the "Warrant Service Officer Program" provision of the 287(g) program in March, in which "ICE trains, certifies and authorizes your officers to serve and execute administrative

warrants on aliens currently in your agency's custody," according to the ICE website.

Broome County did not sign onto the "Jail Enforcement Model" and "Task Force Model" provisions that require more delegated responsibilities and training to local law enforcement.

As Broome County is not a sanctuary area, Ithaca residents have shared concerns at Ithaca Common Council meetings, raising questions such as, "What prevents a [sheriff] department affiliated with ICE through the 287(g) program from accessing Ithaca's data on their behalf?" Ithaca currently has approved their Flock data access to 106 other law enforcement agencies.

Residents have also voiced their values in protecting Ithaca and Tompkins County from federal agencies viewing them as "targets" and asking local lawmakers to "dismantle [these] dangerous technological infrastructure of authoritarianism."

Broome County Sheriff Frederick J. Akshar II, who signed an agreement to abide by the 287(g) program's "Warrant Service Officer" provision, told sources at a press conference last year that he supported the provision because it reduces the complexities of waiting for ICE agents to travel to the jail to serve an immigration warrant if an inmate in question had an outstanding warrant.

This move by Akshar was met with public pushback. On Sept. 11, over 150 people convened at the United Presbyterian Church of Binghamton to listen to a panel that discussed concerns with Broome County's agreement to the "Warrant Service Officer Program" and the overall quality of life for arrestees in the county jail.

In June, a Texas sheriff utilized Illinois license plate readers to track down a Texas resident who had undergone a self-managed abortion in Illinois. It was

later found that the Illinois police department violated state law by sharing this data.

Recently, traffic cameras have been set up near a Planned Parenthood located at 117 Hawley St. in Binghamton, which is located in Broome County.

WBNG reported that pictures of ICE agents making arrests in the Broome County area have been circulating on Facebook, causing local dismay. With Broome County having access to traffic cameras, members of the public have increasingly started to speculate about the Broome County Sheriff's Office's participation in ICE operations outside of the "Warrant Service Officer" provision agreed upon, as ICE can only train and authorize local law enforcement to administer warrants on behalf of ICE.

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